



U.S. Department
of Transportation

Research and
Special Programs
Administration

NOV 7 1989

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10078

1. Wasson-ECE Instrumentation, Inc., Fort Collins, Colorado, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification cylinder for sampling of certain flammable liquids and flammable gases, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Wasson-ECE Instrumentation, Inc.'s application dated October 21, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquefied petroleum gas and other petroleum refining products classed as flammable liquid or flammable gas, as appropriate.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.302(a), 173.304(a).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification cylinder, with flanged flat head and closures at each end, made in accordance with Drawing P/M C 100 on file with the Office of Hazardous Materials Transportation and conforming with DOT Specification 3E (49 CFR 178.42), except as follows.

§ 178.42-2 Type, size and service pressure.

(a) Type and size. Seamless. Must have outside diameter not greater than 2.3 inches.

§ 178.42-5 Steel.

(a) All cylinder components must be type 304 schedule 80 stainless steel. Minimum wall thickness is 0.105 inch.

178.42-10 Safety devices and protection for valves, safety devices and other connections if applied.

(b) (added) Each head must be equipped with safety relief devices.

178.42-11 Hydrostatic test.

(a) Hydrostatic test must be as follows:

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(1) Each cylinder (seamless tube with end caps) must be tested to a hydrostatic test of 3,600 psig and show no defect.

(2) In addition, one cylinder (seamless tube with end caps) out of each lot of 500 cylinders or less must be pressurized to failure. The pressure at which the cylinder fails to hold test pressure shall be recorded. This pressure may not be less than 5,000 psi. Rate of pressurization may not exceed 200 psi per second.

§ 178.42-14 Marking.

(a) * * *

(1) "DOT-E 10078 1800" instead of "DOT 3E 1800".

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Shippers may use the packaging covered by this exemption pursuant to the provisions of 49 CFR 173.22a.

c. Each cylinder must be pressure retested to 3,600 psi once every 5 years without leakage. Test date must be marked on the cylinder near the last test date.

d. Each cylinder must be overpacked for shipment in accordance with 49 CFR 173.301(k)(1).

e. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

f. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the ORMT as soon as practicable.

10. EXPIRATION DATE. September 30, 1991.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

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(DATE)

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S. Department
of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA